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EDS releases scathing submission on Fast-track Approvals Amendment Bill

11 November 2025

The Environmental Defence Society (EDS) has condemned the Fast-track Approvals Amendment Bill in its submission to the Environment Select Committee, warning that it will further weaken environmental safeguards, erode public participation, and undermine constitutional checks and balances.

“Despite being presented by the Government as a focused, technical measure to improve competition in the grocery sector, it is nothing of the sort. The word ‘grocery’ appears once in the entire Bill,” said EDS Chief Operating Officer Shay Schlaepfer.

“The Bill’s real effect is to give the Minister more influence in fast-track decisions, to gut environmental and public scrutiny and to impose unrealistic deadlines. From every angle – environmental, democratic, and constitutional – this Bill makes a shocking law even worse.

“A central concern is the proposal to allow a new Government Policy Statement (GPS) to define what constitutes “regional or national benefit”. Panels would have to consider the GPS when

deciding whether to approve projects, meaning the Minister could effectively pre-determine the benefits of certain industries or developments.

"It opens the door for Ministers to declare that entire classes of projects – say coal mines or large infrastructure – are automatically 'beneficial'. That is a significant shift in power away from independent expert panels.

"There are no guardrails on the development of a GPS. Public consultation on it is not required. It is an unfettered power.

"The Bill also severely constrains community and NGO participation, by further limiting when panels can invite input from groups other than councils. Currently, panels can seek input from any person or organisation they consider appropriate. Under the Bill, panels will only be allowed to invite comment from others if local councils don't intend to provide their own feedback.

"In practice, communities and environmental groups will be largely shut out. Councils are already under intense time pressure and resource strain. They cannot be expected to speak for everyone who has a stake in these projects.

"Even if panels do invite others to provide comment, those people will no longer be able to appeal on points of law to the High Court. Access to justice is being slashed, and we can expect to see community anger being funneled into judicial review.

The Bill also:

- Imposes arbitrary 60-day decision timeframes for expert panels on complex proposals;
- Allows significant project modifications to be approved once inside the fast-track system with reduced scrutiny;
- Gives applicants an effective veto over panel members by allowing challenges to their impartiality; and
- Enables Ministerial direction of the EPA, undermining its independence.

"Rather incredibly, the Bill proposes giving the Crown power to amend aspects of the Fast-track Approvals Act directly through Order in Council, bypassing Parliament. This usurps the constitutional role of the legislature, and is what is known as a Henry VIII clause. We have written to the Attorney-General to express our deep concern.

"The public has been given only seven working days to make submissions on the Bill. The deadline is 17 November 2025. EDS is publishing its submission early to help others get involved in the process.

"In our submission we recommended that the most problematic provisions – including the GPS power, constraints on participation, applicant veto of panel members, the Henry VIII clause, and Ministerial direction of the EPA – be removed.

"At a minimum, these changes need to be withdrawn. But more fundamentally, the fast-track law itself remains deeply flawed. It is time to re-examine or repeal it," concluded Ms Schlaepfer.

Read EDS's submission [here](#).

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